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Faber on Mechanics of Patent Claim Drafting

Seventh Edition

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In this release, author Robert C. Faber updates and expands his treatise with practical information and commentary on a variety of issues affecting patent claim drafting. Among the topics covered are the following:

Subject matter eligibility—DNA testing: In *Ariosa Diagnostics, Inc. v. Sequenom, Inc.*, the claims concerned a noninvasive, prenatal diagnostic test based on a discovery that maternal blood contains fetal DNA from which fetal characteristics can be determined. The Federal Circuit found that the existence of cffDNA (cell-free fetal DNA) is a natural phenomenon, so that the claims were directed to a naturally occurring substance. Further, the steps in the claims for analyzing the substance were well understood, routine, and conventional, and the only new subject matter in the claims was the discovery of the presence of the fetal DNA in the maternal blood. The court concluded that claiming conventional steps based on discovery about a naturally occurring substance does not make a claim patent-eligible. See § 1:4, at note 34.1.

Subject matter eligibility—software-based inventions: The release reviews recent cases involving software-based inventions. In one decision, the Federal Circuit’s *Ultramercial, Inc. v. Hulu, LLC* rejected, as a mere abstract idea, a software-based patent, but gave little guidance as to what is “abstract” or what kinds of software-based inventions may be successfully patented in the future. What was claimed was an eleven-step method for Internet distribution of copyrighted media material. The court noted that the steps in this “process of receiving copyrighted material, selecting an ad, offering the media in exchange for watching the selected ad, displaying the ad, allowing the consumer access to the media and receiving payment from the sponsor of the ad, all describe an abstract idea, devoid of a concrete or tangible application. . . . The addition of merely novel or non-routine components to the claimed idea [does not] necessarily turn an abstraction into something concrete.” But the court would not say that “all claims in all software-based patents will necessarily be directed to an abstract idea. Future cases may turn out differently.” See § 1:4, at note 43.1.

A rare case finding patent-eligible subject matter in this area was *DDR Holdings, LLC v. Hotels.com, LP*, where the Federal Circuit noted that the patent dealt with a problem unique to the Internet and asserted an Internet-based solution to the problem. See § 1:4, at note 43.7.

(continued on reverse)

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Preamble: In *TomTom, Inc. v. Adolph*, the claim preamble consisted of the words “a method for generating and updating data for use in a destination tracking system of at least one mobile unit.” The Federal Circuit found that the “destination tracking system” phrase was a claim limitation, as providing necessary structure. But the purpose, “generating,” was nonlimiting and did not provide an antecedent basis for claims. See § 2:4, at note 14.1.

Specification—invention “constitutes a distinctive advantage”: The Federal Circuit in *Cadence Pharmaceuticals Inc. v. Exela PharmSci, Inc.* held that “constitutes a distinctive advantage” did not imply that the invention was limited to particular embodiments, because the prosecution history did not contain a clear disavowal of the claim step in issue as being an optional step (and despite the applicant’s comparing that advantageous step with a prior art reference and the step proving stability). See § 3:10, at note 249.1.

Specification—objects of the invention: Is it good practice to include in the specification the object or objects of the invention? Doing so is common in some countries other than the United States. The author raises some questions about the practice, including these: Is satisfaction of the objects a prerequisite for infringement or for determining utility of the invention or definiteness of the claims? Or are the objects merely an alerting message to what follows? Must the objects all have been accomplished or be possible to accomplish? See § 3:10, at note 262.1.

Presumption from the absence of the term “means” in the claim: Starting in 2004, with *Lighting World, Inc. v. Birchwood Lighting, Inc.*, the Federal Circuit characterized the presumption based on the absence of “means” as a “strong one that is not readily overcome,” effectively making it irrebuttable. However, in June 2015, in *Williamson v. Citrix Online, LLC*, the Federal Circuit overruled its position in *Lighting World*, so that the presumption based on the absence of “means” from the claim can be overcome if the claim term (for example, a nonce word) fails to define sufficiently definite structure or recites function without reciting sufficient structure to perform the function. See § 3:29.5, at note 526.1.

“Structure” in software claims: In the case of a software claim, in order to have any structure, at least one algorithm should be disclosed, or else the claim may be found to be indefinite. As the Federal Circuit said in *Eon Corp. IP Holdings LLC v. AT&T Mobility LLC*, “the corresponding structure for a function performed by a software algorithm is the algorithm itself.” See § 3:29.8, at note 587.1.

Method claims satisfied by one or more entities: The definition of direct infringement of a method claim has evolved. As stated in the Federal Circuit’s August 2015 en banc decision in *Akamai Technologies, Inc. v. Limelight Networks, Inc.*, liability for direct infringement of a method claim comprised of more than one step requires that all of the method steps be attributable to one entity. In addition to the obvious case where one entity performs all of the method claim steps by itself, the test is satisfied if one entity directs or controls another’s performance of a method step by a second entity, as in an agency or contractual relation. Alternatively, the required direction or control is established if all the participants form a joint enterprise for performing and/or using all of the claimed method steps. But these are not the only possibilities; the court in each case must determine whether the accused actions are attributable to another “such that a single entity is responsible for the infringement.” See § 7:3, at note 12.

New and updated appendices: This release adds new Appendix C6, the PTO’s July 2015 Update: Subject Matter Eligibility. The release also updates Appendix D, the Glossary and Index of Patent Terms.

In addition, this release updates the **Table of Authorities** and the **Index**.

FILING INSTRUCTIONS

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REMOVE OLD PAGES NUMBERED:

- ☐ Title page to 4-49
- ☐ 7-1 to 8-22
- ☐ App. C2-1 to App. C2-15
- ☐ _____
- ☐ App. D-1 to I-24

INSERT NEW PAGES NUMBERED:

- ☐ Title page to 4-49
- ☐ 7-1 to 8-22
- ☐ App. C2-1 to App. C2-15
- ☐ App. C6-1 to App. C6-12
- ☐ App. D-1 to I-24

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